

**COURT OF APPEALS OF THE STATE OF
WASHINGTON
DIVISION ONE**

ZACKARIAH BENNETT, Appellant

v.

MELVINA MANNING, Respondent

No. 87007-6

APPELLANT'S REPLY BRIEF

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TABLE OF AUTHORITIES

- ◆ *Grange Ins. Ass’n v. Roberts*, 173 Wn. App. 370, 320 P.3d 77 (2013)
- ◆ *Green v. A.P.C.*, 136 Wn.2d 87, 960 P.2d 912 (1998)
- ◆ *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238 (1944)
- ◆ *Lasalle Nat’l Bank v. San Juana*, 95 Wn. App. 148, 974 P.2d 1249 (1999)
- ◆ *Mathews v. Eldridge*, 424 U.S. 319 (1976)
- ◆ *Millay v. Cam*, 135 Wn.2d 193, 955 P.2d 791 (1998)
- ◆ *Pumphrey v. K.W. Thompson Tool Co.*, 62 F.3d 1128 (9th Cir. 1995)
- ◆ *Restatement (Second) of Torts* § 700
- ◆ *Roberson v. Perez*, 156 Wn.2d 33 (2005)
- ◆ *Stiley v. Block*, 130 Wn.2d 486, 925 P.2d 194 (1996)
- ◆ *Strode v. Gleason*, 9 Wn. App. 13, 510 P.2d 250 (1973)
- ◆ *Troxel v. Granville*, 530 U.S. 57 (2000)
- ◆ *Waller v. State*, 64 Wn. App. 318, 824 P.2d 1225 (1992)
- ◆ *Young v. Key Pharmaceuticals, Inc.*, 112 Wn.2d 216, 770 P.2d 182 (1989)
- ◆ *Story v. Shelter Bay Co.*, 52 Wn. App. 334, 345 (1988)

I. INTRODUCTION

This case presents a civil tort action—not a custody dispute—alleging fraud, custodial interference, intentional infliction of emotional distress, abuse of process, defamation, and related statutory violations. These claims arise from Respondent’s longstanding misconduct and are grounded in both factual allegations and legal precedent independent of prior family law determinations.

In response, Respondent asserts that Appellant’s claims are precluded by res judicata based on a 2013 relinquishment order and a 2008 custody order. However, these documents were neither presented to nor entered into the record in the trial court. Further, Respondent failed to support her summary judgment motion with admissible evidence, and instead relied on procedural irregularities, including misrepresentations of fact and extra-record materials.

This Reply Brief demonstrates that Respondent's arguments rest on three fundamental flaws:

- 1) Due Process Violations: Respondent introduced evidence outside the record and the trial court adopted a proposed order—never served on Appellant and factually inaccurate—without providing Appellant an opportunity to respond.
- 2) Improper Summary Judgment: Respondent failed to carry her initial burden under *CR 56(c)*, offering no admissible evidence to support her defenses or disprove Appellant's claims.
- 3) Existence of Material Fact Disputes: The record reveals genuine disputes—particularly regarding fraud, abandonment, and Respondent's misuse of process—that preclude summary judgment.

The sections that follow will:

- ◆ Rebut Respondent’s factual misstatements and procedural defenses (Sections II–V);
- ◆ Address due process and summary judgment violations (Sections VI–IX);
- ◆ Confirm the legal validity of Appellant’s tort claims (Sections X–XI);
- ◆ Show the trial court’s failure to follow CR 56 procedures (Section XII); and
- ◆ Conclude with why reversal and remand are warranted (Section XIII).

II. RESPONDENT FAILS TO DENY APPELLANT’S ALLEGATIONS OF FRAUD AND INTERFERENCE

Respondent does not deny inducing the 2013 relinquishment through misrepresentations, concealing the secret no-contact agreement, or misusing court processes. Washington recognizes tortious interference with parental rights, as established in *Strode*, *Waller*, and *Grange*. Fraud elements are similarly met under *Stiley*. Respondent’s failure to address these allegations concedes genuine factual disputes.

III. RESPONDENT'S LIMITATIONS DEFENSE IGNORES DISCOVERY RULE, EQUITABLE TOLLING, AND FRAUD ON THE COURT

Limitations were tolled in equity under *Green* and *Millay* because Respondent concealed the facts required to assert the claim. Appellant reasonably believed reunification was possible until 2019 and only discovered the full fraud in 2022. Moreover, where fraud affects the integrity of the judicial process, relief may be granted notwithstanding the plaintiff's diligence, as established by *Hazel-Atlas* and *Pumphrey*.

IV. DVPO PROCEEDING DID NOT ADJUDICATE CIVIL CLAIMS

The DVPO proceeding addressed only whether a protective order should issue. The trial judge expressly limited its scope, and *Roberson* confirms that res judicata applies only to issues actually litigated - unlike these tort claims, which were unaddressed and filed separately.

V. RESPONDENT ENGINEERED AND BENEFITTED FROM THE DELAY

Respondent fostered delay through false assurances, while Appellant continued contact and complied with her purported conditions for reunification. These facts support equitable tolling and reject any laches argument.

VI. THE SUPERIOR COURT' S RELIANCE ON AN UNSERVED, INACCURATE ORDER VIOLATED DUE PROCESS

Appellant was never served with a proposed order and had no opportunity to object to its erroneous statements—particularly those dismissing his civil claims as precluded. Due process under *Mathews v. Eldridge* requires notice and a meaningful chance to be heard prior to dispositive rulings. Denial of that opportunity constitutes reversible procedural error.

VII. THE TORT IS SUPPORTED BY COMMON LAW AND CONSTITUTIONAL PRINCIPLES

Custodial interference is recognized under common law and *Restatement (Second) of Torts § 700*. Parental rights are constitutionally protected, as reaffirmed in *Troxel* and

Quilloin. Courts have recognized IIED claims arising from psychological alienation, including *Raftery*.

VIII. THE 2008 DEFAULT CUSTODY ORDER AND ABANDONMENT FINDING WERE PROCEDURALLY AND FACTUALLY DEFECTIVE

Respondent's own 2008 declaration acknowledges that Appellant was calling his son "a couple times per week" and that both parents threatened removal—facts inconsistent with abandonment under *RCW 13.34.030(1)*. The default order was entered while Appellant was incarcerated based on false statements from Respondent. Neither due process nor substantial evidence supported those findings.

IX. SUMMARY JUDGMENT REQUIRES ADMISSIBLE EVIDENCE AND RESPONDENT FAILED TO MEET HER INITIAL BURDEN

Summary judgment requires the moving party to present admissible evidence demonstrating entitlement to judgment as a matter of law. *Young* and *Lasalle Nat'l Bank* confirm argument is insufficient. Here, Respondent submitted no admissible evidence concerning the invalidity of the

relinquishment—or that it survived dismissal of the cause in 2019¹, nor a judgment on the merits of any claim presented in support of res judica.

Appellant objected repeatedly and offered proof, only to be overruled. The court’s ruling portrays reliance solely on the Respondent’s false assertions, blatant misrepresentation of prior proceedings, and re-labelling of tort claims as attempts at civil an prosecution.

These due process and evidentiary violations alone require reversal.

X. APPELLANT’ S CLAIMS SOUND IN TORT AND ARE INDEPENDENT OF FAMILY LAW CUSTODY PROCEEDINGS

While Respondent frames this as a custody dispute barred by best-interests standards, Appellant asserts recognized civil tort claims: fraud, custodial interference, abuse of process, IIED, defamation, and statutory violations under RCW

¹ Snohomish County Superiour Court cause# 13-5-00050-3

9A.76.175. These claims are independent of custody determinations. See *Strode*.

XI. THE TRIAL COURT’ S FINDING OF
“WILLFUL ABANDONMENT” WAS NOT SUPPORTED
BY SUBSTANTIAL EVIDENCE

The Superior Court’s December 2008 finding that Appellant “willfully abandoned” his son under *RCW 13.34.030* was unsupported by substantial evidence and cannot bar his claims here. Under *RCW 13.34.030(1)*, abandonment occurs when a parent leaves the child without parental care or custody and fails to make reasonable efforts to maintain contact or provide support over an extended period.

The record shows the opposite. Respondent’s own November 2008 declaration admits that Appellant was calling his son “a couple times per week” and making threats to remove him from her custody — conduct wholly inconsistent with abandonment. Appellant repeatedly demanded the return of his son starting in April 2008, mere

weeks after allowing him to stay temporarily with Respondent under a written agreement.

Appellant was also incarcerated in Colorado for part of the relevant time due to allegedly false reports made by Respondent, which impaired his ability to appear in court, and to pursue custody. Washington courts recognize that incarceration, standing alone, does not constitute willful abandonment where the parent has otherwise demonstrated intent and effort to maintain the relationship.

Thus, the abandonment finding rests on incomplete and uninvestigated allegations and ignores evidence of ongoing contact and repeated demands for return — precisely the opposite of abandonment.

XII. THE TRIAL COURT DISREGARDED CR 56 REQUIREMENTS FOR EVIDENCE AND ORDER FORM

CR 56(g) provides that affidavits submitted in bad faith or solely for the purpose of delay require immediate sanctions and may warrant a finding of contempt.

Respondent's factual assertions were unsupported by admissible evidence, contradicted by the record, and presented without proper disclosure. At minimum, they reflect bad faith in the presentation of facts, especially where Respondent relied on unverified documents outside the record, and that the non-movant asserts are false and/or being grossly misrepresented.

Moreover, CR 56(h) mandates that the trial court "designate the documents and other evidence called to the attention of the trial court before the order on summary judgment was entered." The order granting summary judgment in this case fails to comply with CR 56(h). It does not identify any admissible evidence or documentation as the basis for its conclusions. In fact, the court relied on unsupported oral assertions and documents not part of the trial court record, over Appellant's repeated objections and offers of proof.

These omissions underscore not only a due process violation (*Mathews v. Eldridge*, 424 U.S. 319), but also a procedural

error under the plain text of CR 56(h). A summary judgment ruling unsupported by designated evidence is reversible error.

XIII. CONCLUSION

Respondent fails to overcome genuine factual disputes and continues to misstate the record. She relies on a 2013 relinquishment outside the record, of which the validity is contested and was dismissed. The trial court improperly adopted Respondent's unsupported claim of res judicata—over Appellant's repeated objections, offered proof, and without notice—a clear violation of due process.

Moreover, the court mischaracterized Appellant's civil tort claims as an attempt at criminal prosecution. Appellant seeks damages under established tort theories based on wrongful conduct—not criminal enforcement.

Respondent's reliance on at least five extra-record documents in her Answer/Reply brief, without a motion under *RAP 9.11*, violates *RAP 9.1* and *RPC 3.3(a)*.

These irregularities prejudiced Appellant's right to a fair hearing and deprived him of meaningful appellate record preservation.

This Court should reverse the summary judgment and remand for trial.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', with a stylized, cursive script.

Zackariah Bennett, Pro Se

Dated: 07/26/2025

1398 words

APPENDIX A: TABLE OF CLAIMS

Claim	Legal Basis	Supporting Facts
Fraud		Inducing 2013
	Stiley v.	relinquishment through
	Block, 130	false promises, false
	Wn. 2d 486	representations, and
	(1996)	concealment of secret
		agreement
Custodial Interference	Restatement	Withholding child despite
	(Second) of	repeated
	Torts § 700;	demands for return, and
	Strode v.	denying the father his
	Gleason, 9 Wn.	right to access and
	App. 13 (1973)	physical custody
Abuse of Process	Washington common law	Misusing court processes to secure default custody and prevent reunification

Claim	Legal Basis	Supporting Facts
Intentional Infliction of Emotional Distress	Raftery v. Scott, 756 F.2d 335 (4th Cir. 1985)	Prolonged alienation, false accusations, and denial of contact causing emotional harm
Defamation	Washington common law	False allegations of abuse and domestic violence to courts and others
	RCW 9.73	Illegal use of intercepted communications
Statutory Violations	RCW 9A.76.175	False statements to probation officers resulting in wrongful detention and deprivation of rights.

Respectfully submitted,

Zackariah Bennett



Zackariah Bennett, Pro Se

Dated: 07/26/2025

APPENDIX B: NOTICE OF ADDITIONAL AUTHORITY (RAP 10.8)

Appellant submits the following authorities:

- ◆ *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238 (1944)
- ◆ *Pumphrey v. K.W. Thompson Tool Co.*, 62 F.3d 1128 (9th Cir. 1995)
- ◆ *Restatement (Second) of Torts* § 700
- ◆ *Troxel v. Granville*, 530 U.S. 57 (2000)
- ◆ *Lasalle Nat'l Bank v. San Juana*, 95 Wn. App. 148, 154 (1999)
- ◆ *Story v. Shelter Bay Co.*, 52 Wn. App. 334, 345 (1988)
- ◆ *Superior Court Civil Rule (CR) 56*

These authorities support Appellant's position that:

- (1) fraud on the court warrants relief regardless of delay or diligence (*Hazel-Atlas*, *Pumphrey*);
- (2) custodial interference is a recognized tort (*Restatement* § 700, *Strode*);
- (3) the parent-child relationship is a fundamental liberty interest (*Troxel*);

(4) summary judgment must rest on admissible evidence in the record (*Lasalle, Story*).

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', with a stylized flourish at the end.

Zackariah Bennett, Pro Se

Dated: 07/26/2025